City of Pembroke Pines, FL

City of Pembroke Pines
Charles F. Dodge City Center
601 City Center Way
Pembroke Pines, FL 33025

Meeting Minutes

Wednesday, March 17, 2021

5:00 PM

5:00 PM Virtual Workshop (Exh#4, Exh#5 added). 6:30 PM Virtual Regular Commission meeting. Public Hearing on CAPER 2019 at 6:30 PM. Public Hearing Quasi Items #15 and #16. ADD-1 item added to Consent Agenda. Updated agenda republished on 3/16/2021.

Commission Chambers

City Commission

Mayor Frank Ortis
Vice Mayor Jay D. Schwartz
Commissioner Thomas Good, Jr.
Commissioner Angelo Castillo
Commissioner Iris A. Siple

5:00 PM WORKSHOP MEETING CALLED TO ORDER

WORKSHOP ITEMS:

ROLL CALL

Present 5 - Mayor Frank Ortis, Vice Mayor Jay D. Schwartz, Commissioner Thomas Good Jr., Commissioner Angelo Castillo, and Commissioner Iris A. Siple

Also present: City Manager Charles F. Dodge, City Attorney Samuel S. Goren, City Clerk Marlene D. Graham, and City Controller Jonathan Bonilla.

WS-1 21-0160

WORKSHOP ITEM #1: REVIEW OF THE DRAFT SOLICITATION PACKAGES FOR:

(A) AD-21-02 "DISASTER DEBRIS MANAGEMENT SERVICES"
(B) AD-21-03 "DISASTER RECOVERY MONITORING AND REIMBURSEMENT ASSISTANCE"

City Attorney Goren provided all of the options available for the public to participate in the meeting according to the City's Emergency Ordinance 1952 and the extension of Governor Ron Desantis' Emergency Executive order 20-52 for a virtual quorum: via Cisco Webex virtual platform, email submittal to publiccomments@ppines.com, Livestream, TV Channels 78/99, or by dialing in.

All public comments whether called in via phone or emails read into the record are limited to 3 minutes each.

After the roll call was taken, City Attorney Goren introduced the workshop items to be discussed.

City Manager Dodge then introduced Mark Gomes, Procurement Director, who presented the outline of the following items for discussion via PowerPoint Presentation:

Debris Management Services - The contract must be in place before any natural disaster to receive reimbursement from FEMA.

Federal Law/ Local Vendor Preference - Local vendor preference cannot be included in the RFP solicitation as it is prohibited by section 2 CFR 200.319 (b) of the federal guidelines for reimbursement with FEMA.

Hurricane Irma - The costs incurred as a result of the natural disaster were reviewed. The City had a primary and a secondary vendor during the time and the secondary vendor had to be used as a result of the lack of performance from the first vendor.

RFP's AD-18-03 and AD-19-03 (Previous Debris Management Solicitations):
- April 17, 2019 Workshop
- Post Workshop Comments
- Revised Solicitations - The discussion resulted due to the lack of performance from the primary vendor and still trying to ensure the City's needs are met on debris management; the City agreed to a 1-year contract with TFR Enterprises. and then would revisit the logistics of the future RFP at a later date.

The City Commission requested a new workshop before re-advertising the new RFP.

RFP AD-21-02 Debris Management Services Solicitation (New) includes updated to the following items:

How the work will be distributed, the qualification process for the primary and a secondary pool of contractors on an as-needed basis.
The scoring of project costs.
Annual plan/operations management meeting.
Payment and performance bond requirement with coverage from 1 million to 10 million dollars.
Event coordination requirements.
Personnel and equipment requirements.
Contracts terms - 5 Years with no renewal terms.
Liquidated damages.
Damages.
Internal vs. Brokered services.
Financial Stability.
Workload and approach to work.

Mr. Gomes continued presenting the second portion of the presentation regarding Disaster Monitoring and Reimbursement Assistance Services:

-Disaster monitoring.
-Reiteration of the federal law regarding local vendor preference.
-AD-18-04- Disaster monitoring services RFP and the primary, secondary, and tertiary vendors selected at that time.
- The Commission requested a workshop to discuss bid qualifications before re-advertisement.

RFP AD-21-03 Disaster Monitoring Services Solicitation (New) includes updates to the following items:

Scoring of projected costs.
Annual plan/operations meeting.
Event coordination.
Personnel requirements.
Field collection monitoring operations.
Site monitors.
Reimbursement Assistance.
Contract terms.
Internal vs. Brokered Services.
Financial Stability and workload.

The debris management and the debris monitoring services must be separate as required by federal law and as a part of the requirements for FEMA reimbursement.

Mayor Ortis, Commissioner Good, Commissioner Castillo, Vice Mayor Schwartz, and Commissioner Siple spoke and inquired about the matters presented.

City Attorney Goren responded to the questions of the Commission regarding liquidated damages, the debarment clause referencing section 37.23 listed in the RFP, and the performance bond requirement.

City Manager Dodge responded to the questions of the Commission regarding clarification of the language in certain sections of the RFP and about contract terms.

Mark Gomes, Procurement Director, responded to the questions of the Commission regarding the performance bond requirement and confirmed the dates of an expiration with the current vendors.

WORKSHOP MEETING RECESSED

Mayor Ortis recessed the Workshop Meeting to open the Public

Hearing on Consolidated Annual Performance Evaluation Report (CAPER-Fiscal Year 2019), advertised for a time-certain of 6:30 PM.

PUBLIC HEARING:

City Attorney Goren read the public hearing item into the record, by title.

Mayor Ortis opened the public hearing.

City Controller Jonathan Bonilla confirmed that there were no members of the public wishing to speak on the item.

Mayor Ortis closed the public hearing.

PUBLIC HEARING ADJOURNED

Upon adjournment of the Public Hearing, Mayor Ortis resumed the Workshop Meeting.

WORKSHOP MEETING RESUMED 6:38 PM

Mayor Ortis reconvened the discussion of the workshop item.

City Attorney Goren responded to the questions of the Commission regarding revisions to certain sections of the language, to be included in the new RFP.

Mark Gomes, Procurement Director, responded to the questions of the Commission regarding the payment bond requirement.

City Manager Dodge and Lisa Chong, Finance Director, responded to the questions of the Commission regarding the payment bond requirement and about any FEMA reimbursements due to Hurricane Irma.

ADJOURNMENT OF WORKSHOP

6:30 PM PUBLIC HEARING CALLED TO ORDER :

OPEN PUBLIC HEARING

PH-1 21-0162

PH-1: THE PURPOSE OF THIS PUBLIC HEARING IS TO RECEIVE PUBLIC COMMENT ON THE CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT ("CAPER - FISCAL YEAR 2019")

MOTION TO ADOPT PROPOSED RESOLUTION 2021-R-05. PROPOSED RESOLUTION 2021-R-05 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING THE PROGRAM YEAR 2019 CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT (CAPER) FOR COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAMS; PROVIDING FOR RECORDATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

PROPOSED RESOLUTION 2021-R-05 IS ITEM # 19 ON THE AGENDA.

City Attorney Goren provided instructions for accessing the virtual meeting platform.

CLOSE PUBLIC HEARING

ROLL CALL

Present 5 - Mayor Frank Ortis, Vice Mayor Jay D. Schwartz, Commissioner Thomas Good Jr., Commissioner Angelo Castillo, and Commissioner Iris A. Siple

Also present: City Manager Charles F. Dodge, City Attorney Samuel S. Goren, City Clerk Marlene D. Graham, and City Controller Jonathan Bonilla.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Mayor Ortis.

Commissioner Castillo spoke about the plane crash at North Perry Airport that occurred on March 15, 2021.

The City Commission observed a moment of silence in honor of the

Bishop family tragically impacted on the ground by the plane crash, and for the two pilots who perished on the plane.

Commissioner Good spoke about the plane crash, about the grief of Ms. Megan Bishop whose son lost his life as a result of the vehicle being hit by the plane that crashed.

Mayor Ortis commended the Fire and Police Department for their responses to the tragic situation.

Commissioner Good wanted to bring up the plane crash tragedy as a topic under New Business.

Commissioner Siple spoke about the success of the recent Raising Positive Children event. She introduced Coach Dave Roca who spoke about the student athletes and their achievements in Charter School sports.

Vice Mayor Schwartz expressed his thanks to Coach Roca.

Vice Mayor Schwartz spoke about the Bishop Family impacted by the plane crash. He said he wanted to have a town hall meeting with county and federal officials along with the Broward County Mayor, Steve Geller. The town hall meeting would cover safety at the North Perry Airport. Vice Mayor Schwartz also mentioned the Aircraft Owners and Pilots Association (AOPA) will be hosting meeting at North Perry Airport to discuss the topic of safety and that he would advise the Commission with further information.

PRESENTATIONS:

ANNOUNCEMENT OF ITEMS TO BE PULLED FROM AGENDA

The City Clerk announced no items pulled from the Agenda.

ITEMS AT THE REQUEST OF THE PUBLIC

The Clerk announced no items at the request of the public.

ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENTS

No board appointments were announced.

CONSENT AGENDA:

1. **21-0079** MOTION TO AWARD IFB # PSPW-20-07 "SOD AND SOD INSTALLATION / REMOVAL SERVICES" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDER, MULLINGS ENGINEERING SERVICES LANDSCAPING DIVISION INC., IN THE ANNUAL AMOUNT NOT TO EXCEED $250,000.

A motion was made to approve on the Consent Agenda

2. **21-0096** MOTION TO APPROVE THE SECOND AMENDMENT TO THE AGREEMENT WITH CALVIN GIORDANO AND ASSOCIATES FOR PARKS MAINTENANCE SERVICES TO PROVIDE FOR ADDITIONAL SCOPE OF WORK AND A RENEWAL OF THE AGREEMENT FOR AN ADDITIONAL FIVE YEARS EFFECTIVE OCTOBER 1, 2021 FOR A TOTAL ANNUAL AMOUNT NOT TO EXCEED $6,845,127

A motion was made to approve on the Consent Agenda

3. **21-0105** MOTION TO APPROVE THE FINDINGS AND RECOMMENDATIONS OF THE EVALUATION COMMITTEE AND TO AWARD RFQ # PSEN-20-03 "CEI SERVICES FOR WTP LIME FEED SYS. REFURBISHMENT, VALVE INSERTION, FLOWMETER ADDITION" TO CAROLLO ENGINEERS, INC., AND TO APPROVE THE NEGOTIATED AGREEMENT WITH CAROLLO ENGINEERS, INC., IN ACCORDANCE WITH FLORIDA STATUTE 287.055, CONSULTANTS COMPETITIVE NEGOTIATIONS ACT (CCNA), FOR AN AMOUNT NOT TO EXCEED $318,928.

A motion was made to approve on the Consent Agenda

4. **21-0039** MOTION TO AWARD IFB # AD-20-04 "BACK SCANNING AND MEDIA CONVERSION" TO PIONEER TECHNOLOGY GROUP LLC, GRM INFORMATION MANAGEMENT SERVICES OF MIAMI LLC, INFORMATION CONSULTANTS, INC., GLOBAL SOLUTIONS GROUP, INC., AND ADVANCED DATA SOLUTIONS, WHICH WILL FORM A POOL OF VENDORS THAT WILL BE AVAILABLE FOR THE CITY TO CHOOSE FROM FOR SERVICES ON AN AS NEEDED BASIS FOR AN ANNUAL AMOUNT NOT TO EXCEED $134,000 FOR THE 2020-2021 FISCAL YEAR AND $157,000 FOR THE 2021-2022 FISCAL YEAR.

A motion was made to approve on the Consent Agenda

5. **21-0108** MOTION TO RELEASE MAINTENANCE BOND # 20007870 IN THE

AMOUNT OF $14,101.00 FROM CENTRA FALLS II, LLC FOR THE WATER AND SEWER IMPROVEMENTS AT CENTRA FALLS PHASE II.

A motion was made to approve on the Consent Agenda

6. 21-0140 MOTION TO APPROVE THE SOLE SOURCE PURCHASE OF TWO (2) VIGILANT LICENSE PLATE READER (LPR) SPEED TRAILERS, AND TWO (2) VIGILANT LICENSE PLATE READER (LPR) TRAILER RETROFIT KITS FROM VETTED SECURITY SOLUTIONS, IN AN AMOUNT NOT TO EXCEED $116,300, PURSUANT TO SECTION 35.18(C)(3) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

7. 21-0156 MOTION TO RESCIND THE AWARD OF IFB # PSPW-20-13 "CONSTRUCTION OF NEW EXTERIOR STORAGE AREAS FOR CITY CHARTER SCHOOLS" TO M&J CONSULTING GROUP, AND TO AWARD THE MOST RESPONSIVE/RESPONSIBLE BIDDER, PARAGON CONSTRUCTION UNLIMITED, INC., IN THE AMOUNT NOT TO EXCEED $120,418.10, WHICH INCLUDES AN OWNER'S CONTINGENCY IN THE AMOUNT OF $10,947.10.

A motion was made to approve on the Consent Agenda

8. 21-0157 MOTION TO APPROVE THE PURCHASE OF THE RENEWAL OF NETMOTION MOBILITY SOFTWARE AND SUPPORT FOR PEMBROKE PINES POLICE DEPARTMENT, CODE COMPLIANCE, FIRE DEPARTMENT, TECHNOLOGY SERVICES DEPARTMENT AND ADMINISTRATION FROM CDW-G IN THE AMOUNT NOT TO EXCEED $54,875, PURSUANT TO SECTIONS 35.18(C)(7)(H) AND 35.18(C)(7)(I) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

9. 21-0158 MOTION TO AWARD IFB # FI-21-01 "HEAVY-DUTY MOBILE LIFT SYSTEMS FOR FIRE DEPARTMENT" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDER, LIFTNOW AUTOMOTIVE EQUIPMENT CORP., IN THE AMOUNT NOT TO EXCEED $69,699.88.

A motion was made to approve on the Consent Agenda

10. 21-0163 **MOTION TO APPROVE THE DEPARTMENT RECOMMENDATIONS FOR THE FOLLOWING ITEMS LISTED ON THE CONTRACTS**

DATABASE REPORT:

(A) S. Katz, Inc. - Medical Director - Renewal

(B) Randy S. Katz D.O., P.L.-Interim Medical Director - Continuation

ITEMS (C) AND (D) WILL EXPIRE WITH NO RENEWAL TERMS AVAILABLE, THEREFORE, NO COMMISSION ACTION IS REQUIRED AS THEY ARE PRESENTED FOR NOTIFICATION PURPOSES ONLY PURSUANT TO SECTION 35.29 (F) OF THE CITY'S PROCUREMENT CODE:

(C) Government & ERP Implementation Services - Consulting Services - Non Renewal

(D) Admire Cleaning Services - Janitorial Services - Non Renewal

A motion was made to approve on the Consent Agenda

11. 19-0685

MOTION TO APPROVE THE PURCHASE OF NINE (9) FLIR THERMAL CAMERA KITS AND NINE (9) RELATED TRUCK CHARGERS FOR THE FIRE DEPARTMENT FROM THE FIRE STORE, UTILIZING CONTRACT NUMBER GS-07F-0080T PROCURED BY THE UNITED STATES GENERAL SERVICES ADMINISTRATION (GSA) IN THE AMOUNT NOT TO EXCEED $50,507, UTILIZING URBAN AREA SECURITY INITIATIVE (UASI) GRANT FUNDS, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

12. 21-0165

MOTION TO APPROVE THE MINUTES OF THE FEBRUARY 17, 2021 VIRTUAL REGULAR COMMISSION MEETING; MINUTES OF THE FEBRUARY 22, 2021 COMMISSION WORKSHOP; AND THE MINUTES OF THE MARCH 3, 2021 VIRTUAL REGULAR COMMISSION MEETING.

A motion was made to approve on the Consent Agenda

13. 21-0159

MOTION TO APPROVE THE FINDINGS AND RECOMMENDATION OF THE EVALUATION COMMITTEE AND TO AWARD RFP # TS-21-01 "INTERNET FOR CHARTER SCHOOLS" TO COMCAST BUSINESS COMMUNICATIONS, LLC, IN THE AMOUNT NOT TO EXCEED $180,000 FOR AN INITIAL 36 MONTH PERIOD.

A motion was made to approve on the Consent Agenda

14. **21-0164** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):

(A) AD-21-02 "DISASTER DEBRIS MANAGEMENT SERVICES"
(B) AD-21-03 "DISASTER RECOVERY MONITORING AND REIMBURSEMENT ASSISTANCE"
(C) AD-21-04 "KITCHEN EQUIPMENT FOR CITY OF PEMBROKE PINES CHARTER SCHOOLS"

A motion was made to approve on the Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Castillo, seconded by Mayor Ortis, to approve Items 1, 2,3 , 4, 5, 6, 7, 8, 9, 10, 11,12, 13, and Sections (B) and (C) of Item 14 on the Consent Agenda. Section (A) of Item 14 was pulled from the Consent Agenda for discussion. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

14(A) **21-0164** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):

(A) AD-21-02 "DISASTER DEBRIS MANAGEMENT SERVICES"
(B) AD-21-03 "DISASTER RECOVERY MONITORING AND REIMBURSEMENT ASSISTANCE"
(C) AD-21-04 "KITCHEN EQUIPMENT FOR CITY OF PEMBROKE PINES CHARTER SCHOOLS"

A motion was made by Commissioner Good Jr., seconded by Commissioner Castillo, amend the motion to reduce the amount of the bond to $500,000. The motion carried by the following vote:

Aye 3 - Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 2 - Mayor Ortis, and Vice Mayor Schwartz

A motion was made by Commissioner Castillo, seconded by Commissioner Good Jr., to approve the main motion for Section (A) of Item 14. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Good read Item 14A into the record, by title and spoke on the item.

Vice Mayor Schwartz, Commissioner Castillo, Commissioner Siple, and Mayor Ortis spoke on the item.

City Manager Dodge and City Attorney Goren responded to the questions of the Commission about adjusting the amount of the bond in the RFP.

Mark Gomes, Procurement Director, responded to the questions of the Commission regarding the contract terms prior to the awarding of the bid.

ADD-1 21-0167 **[ADD-1: ADDENDUM TO THE 3/17/2021 CONSENT AGENDA]:** MOTION TO APPROVE THE PROPOSED COLLECTIVE BARGAINING AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND FLORIDA POLICE BENEVOLENT ASSOCIATION, INC, (GENERAL EMPLOYEE COLLECTIVE BARGAINING UNIT) FOR A TERM ENDING SEPTEMBER 30, 2023.

A motion was made by Vice Mayor Schwartz, seconded by Commissioner Good Jr., to approve Addendum Item ADD-1. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Item ADD-1 into the record, by title.

QUASI JUDICIAL AGENDA:

ORDINANCES AND RESOLUTIONS:

SECOND READING ORDINANCES:

15. 2021-03 **[PUBLIC HEARING]** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-03 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE 2021-03 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 155, THE COMPREHENSIVE ZONING CODE OF THE CITY OF PEMBROKE PINES, BY SPECIFICALLY AMENDING SECTION 155.027, ENTITLED "ZONING MAP," TO RE-ZONE THE APPROXIMATE 5-ACRE PARCEL OF LAND GENERALLY LOCATED SOUTH OF PINES BOULEVARD AND EAST OF SOUTHWEST 172 AVENUE, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A"; RE-ZONING FROM THE CURRENT ZONING OF A-1 (LIMITED AGRICULTURAL) TO PUD (PLANNED UNIT DEVELOPMENT); PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. **(PUBLIC HEARING)**

Prior to the vote being taken witnesses were administered the oath. Members of the Commission were asked to disclose any contact with the applicant.

A motion was made by Commissioner Good Jr., seconded by Mayor Ortis, to adopt Proposed Ordinance 2021-03. The motion carried by the following vote:

Aye 3 - Mayor Ortis, Vice Mayor Schwartz, and Commissioner Good Jr.

Nay 2 - Commissioner Castillo, and Commissioner Siple

Enactment No: 1961

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-03 into the record, by title and explained the Quasi-Judicial process.

Mayor Ortis opened Public Hearing.

City Controller Jonathan Bonilla confirmed there were no members of the public who wished to speak on the item.

City Clerk Graham stated the following member of the public submitted a public comment via email:

Ms.Tammy Douglas (tammydfrommiami@gmail.com>), 16411 SW 1st Ct., Pembroke Pines, FL

City Clerk Graham also read the email into the record.

Each of the witnesses providing testimony were sworn in by City Attorney Goren for the record.

Mayor Ortis closed the Public Hearing.

City Clerk Graham administered a roll call of the City Commission to establish any ex parte or oral communications pursuant to section 37.10 of the City's Code of Ordinances; between the City Commission and the applicant with the following responses:

Vice Mayor Schwartz: "No."

Commissioner Siple: "No."

Commissioner Castillo: "Yes, he did have contact with applicant on items 15 and 16."

Commissioner Good: "No."

Mayor Ortis: "No."

16. 2021-04 **[PUBLIC HEARING]** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-04 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE 2021-04 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 155, THE COMPREHENSIVE ZONING CODE OF THE CITY OF PEMBROKE PINES, BY SPECIFICALLY AMENDING SECTION 155.027, ENTITLED “ZONING MAP,” AMENDING THE PEMBROKE SHORES PUD TO ADD A NEW PUD ZONE ENTITLED “PUDZONE SF-5” (TOWNHOME) WITH RELATED DEVELOPMENT RESTRICTIONS; ASSIGNING THE PUDZONE SF-5 (TOWNHOME) DESIGNATION TO THE 23.5 ACRES IN THE PUD (PLANNED UNIT DEVELOPMENT); PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. **(PUBLIC HEARING)**

A motion was made by Commissioner Good Jr., seconded by Mayor Ortis, to adopt Proposed Ordinance 2021-04. The motion carried by the following vote:

Aye 3 - Mayor Ortis, Vice Mayor Schwartz, and Commissioner Good Jr.

Nay 2 - Commissioner Castillo, and Commissioner Siple

Enactment No: 1962

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-04 into the record, by title.

Mayor Ortis opened Public Hearing.

City Controller Jonathan Bonilla and City Clerk Graham confirmed there were no members of the public wishing to speak on the item.

Mayor Ortis close the Public Hearing.

17. **2021-02** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-02 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE 2021-02 IS AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, PERTAINING TO THE SUBJECT OF ZONING AND LAND DEVELOPMENT; REPEALING IN ITS ENTIRETY CHAPTERS 37, 116, 153, 155 AND 159 OF THE CITY OF PEMBROKE PINES CODE OF ORDINANCES; ADOPTING NEW LAND DEVELOPMENT CODE FOR THE CITY OF PEMBROKE PINES; ADOPTING A ZONING MAP FOR THE CITY OF PEMBROKE PINES; ADOPTING PHYSICAL AND DIGITAL VERSIONS OF THE LAND DEVELOPMENT CODE AND MAP; PROVIDING FOR THE REPEAL AND AMENDMENTS OF ALL OTHER CODE PROVISIONS AND ORDINANCES INCONSISTENT WITH THIS ORDINANCE; PROVIDING FOR TRANSITION FROM EXISTING LAND DEVELOPMENT CODE; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR CODIFICATION; AND, PROVIDING FOR AN EFFECTIVE DATE.

A motion was made by Commissioner Good Jr., seconded by Commissioner Castillo, to amend the motion pertaining to North Perry Airport, to carve out anything requiring approval by the City of Pembroke Pines to come directly to the Commission, to keep a finger on the pulse of activities at North Perry Airport. The motion carried by the following vote:

Aye 3 - Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 2 - Mayor Ortis, and Vice Mayor Schwartz

Enactment No: 1963

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Ordinance 2021-02 on the Land Development Code. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

Enactment No: 1963

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-02 into the record, by title.

Commissioner Good, Vice Mayor Schwartz, and Commissioner Siple spoke on the item

Mike Stamm, Planning and Economic Development Director, responded to the questions of the Commission.

City Attorney Goren responded to the Commission with regard to the role/limitations the City Commission has relating to North Perry Airport.

18. **2021-05** MOTION TO ADOPT PROPOSED ORDINANCE 2021-05 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE 2021-05 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES FLORIDA PERTAINING TO WATER CONSERVATION; REPEALING AND REPLACING SECTION 50.35 ENTITLED “USE OF WATER FOR IRRIGATION”; TO PROVIDE AN UPDATED USE OF WATER FOR IRRIGATION CODE CONSISTENT WITH THE REQUIREMENTS OF THE SOUTH FLORIDA WATER MANAGEMENT DISTRICT; REPEALING AND REPLACING SECTION 50.36 ENTITLED “WATER SHORTAGE MANAGEMENT”; TO PROVIDE AN UPDATED WATER SHORTAGE PLAN CONSISTENT WITH THE REQUIREMENTS OF THE SOUTH FLORIDA WATER MANAGEMENT DISTRICT; PROVIDING THE INTENT AND PURPOSE;

PROVIDING DEFINITIONS; PROVIDING FOR THE APPLICABILITY OF THE ORDINANCE; PROVIDING FOR THE DECLARATION OF WATER SHORTAGE OR WATER SHORTAGE EMERGENCY; PROVIDING FOR VARIANCES; PROVIDING FOR ENFORCEMENT; PROVIDING FOR PENALTIES; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

A motion was made by Commissioner Castillo, seconded by Commissioner Good Jr., to adopt Proposed Ordinance 2021-05 on water conservation. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

Enactment No: 1964

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Item 18 into the record, by title.

City Controller Jonathan Bonilla confirmed that no members of the public wished to speak on the item.

RESOLUTIONS

19. **2021-R-05** MOTION TO ADOPT PROPOSED RESOLUTION 2021-R-05

PROPOSED RESOLUTION 2021-R-05 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING THE PROGRAM YEAR 2019 CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT (CAPER) FOR COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAMS; PROVIDING FOR RECORDATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE. **(PUBLIC HEARING)**

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Resolution 2021-R-05 on the Consolidated Annual Performance Evaluation Report (CAPER). The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

Enactment No: 3733

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Resolution 2021-R-05 into the record, by title.

Mayor Ortis opened the Public Hearing.

City Controller Jonathan Bonilla confirmed that no members of the public wished to speak on the item.

Mayor Ortis closed the Public Hearing.

REGULAR ITEM:

20. 21-0161 DISCUSSION AND POSSIBLE ACTION ON THE CITY TAKING OVER THE CURRENT OPERATING FUNCTIONS OF THE CITY OF PEMBROKE PINES VETERANS MEMORIAL FOUNDATION, INC.

A motion was made by Commissioner Good Jr., seconded by Commissioner Siple, to approve the continuation of the Veterans Memorial Foundation, appointing volunteers and veterans from the community. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Schwartz, Commissioner Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Mayor Ortis read Item 20 into the record, by title and spoke on the matter.

Commissioner Good, Commissioner Castillo, and Commissioner Siple spoke on the item.

City Manager Dodge responded to the questions of the Commission regarding noticing any vacancies for the organization.

The following member of the public spoke on the item:

Mr. Vincent Parlatore, resident, Pembroke Pines.

City Attorney Goren spoke of the origins of the City's non profit organization and how to proceed to reinstate the 501(C)(3) organization.

REPORTS OF LEAGUE REPRESENTATIVES

Mayor Ortis spoke about the last League of Cities meetings and the need to reach out to the State about some of the unfavorable legislative items impacting cities.

Commissioner Siple spoke on the matter.

REPORTS OF THE CITY MANAGER AND CITY ATTORNEY

Vice Mayor Schwartz thanked Commissioner Siple for her recent segment of Raising Positive Children that talked about the number of students who have attempted suicide. He asked the Commission to consider a K-12 administrator to support guidance counselors in the upcoming budget, to be presented in June.

COMMISSION ITEMS:

NEW BUSINESS:

Commissioner Good revisited the tragedy of the plane crash at the North Perry Airport. He expressed concern about the incident and wanted to have input from the community. He asked that the City Manager move forward with getting in touch with Broward County, the Federal Aviation Authority, and anyone with influence on airport operations, to participate in a conversation on the matter.

The Commission agreed by consensus to proceed with community outreach.

Mayor Ortis, Vice Mayor Schwartz, and Commissioner Castillo, and Commissioner Siple spoke in favor of the matter.

City Manager Dodge responded that the meeting would be set up virtually for anyone who wished to participate.

OLD BUSINESS:

ADJOURN - 8:49 P.M.

CITY OF PEMBROKE PINES

Marlene D. Graham, CMC
City Clerk